

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ FOR PROPOSAL (RFP)
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED					
29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED	

Section A - Solicitation/Contract Form

Asbestos Personnel Monitoring

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Planning Phase for asbestos personnel monitoring services in accordance with the Statement of Work (SOW) found herein. Note: The Planning Phase for this line item 0001 includes face-face meeting times between the contractor's Project Manager and Norfolk Naval Shipyard (NNSY) points of contact which will be provided at time of award. Pricing Arrangement: Firm Fixed Price	10	Hours		
0002	Execution Phase for asbestos personnel monitoring services in accordance with the Statement of Work found herein. Note: The unit of issue for this line item 0002 is Day. One Day equates to two (2) licensed / approved Personnel Monitoring technicians that are on site at all times during a ten (10) hour workday Monday through Friday during 1st shift hours of 0600 to 1830. Pricing Arrangement: Firm Fixed Price	162	Days		

Section C - Description/Specifications/Statement of Work

PERSONNEL MONITORING STATEMENT OF WORK

1. Scope:

1.1. The Contractor shall provide services to accomplish personal and general area air sampling for asbestos. The Contractor will need to perform personal and general area exposure monitoring in accordance with 29 CFR 1915.1001 and delineated in section 3.4 below. Samples shall be conducted during material removal and shall include final clearance. Personal samples will need to be collected on eight individuals and be representative of both long term and excursion limit exposures as specified in OSHA regulation 29 CFR 1915.1001. Contractor shall be prepared to conduct clearance air monitoring upon job completion utilizing EPA AHERA methodology. Contractor will provide their own sampling equipment, including pumps, media, personal protective equipment, respirators, and sampling materials. Results will be provided to the contracting entity upon receipt. Contractor must have or be able to receive the appropriate clearance levels to access navy vessels.

1.2. Period of Performance:

1.2.1. The planning and execution phases of the work will be from August 2026 to December 2026.

1.2.2. The planning phase is expected to take place during the months of August and September. All NNSY provided training will occur during the planning phase. Contractors will be compensated during training periods.

1.2.3. Execution of work will occur from September 2026 to December 2026. Work will be executed at various intervals of time during this period to correspond with the project work schedule.

1.2.4. NNSY will assist with the vetting process to provide Contractors with clearances (if needed). Security clearances may take one to four months after the awarding of the contract to be provided. This period is outside the scope of the planning phase and will not be compensated for. Contractors must have a Secret Clearance Level for work execution.

1.3. Place of Performance

1.3.1. The Contractor shall bring all required tooling and equipment to accomplish all work at Norfolk Naval Shipyard (NNSY) in the Controlled industrial Area (CIA).

2. REFERENCES:

The following documents and their references shall be used in the technical requirements for performing work under this contract. The most current reference revision will be in effect at the time of award, unless otherwise specified. All work shall be performed in accordance with the drawings, documents and procedures cited below regardless of if the drawings, documents and procedures are vessel specific. The revision/change levels of any NAVSEA drawings or document utilized will be dictated by the most current revision/change unless directed otherwise via an Official Shipyard Document or other NAVSEA approved document for performing work under this Performance Work Statement (PWS). If the Contractor desires to use any drawing or technical instruction outside of these guidelines, cognizant Technical Authority concurrence must be given in writing prior to using any other reference, via a Contractor deficiency reporting process to include resolution. Any document not available to the Contractor can be obtained by request via the NNSY Contracting Officer (KO).

2.1. Local Standard Item 042-26-001 Security Requirements for Work Within Norfolk Naval Shipyard (NNSY); accomplish

2.2. Local Standard Item 042-22-001 General Requirements for Work Within Norfolk Naval Shipyard (NNSY); accomplish

2.3. OSHA Standard 29 CFR 1915.1001 - Asbestos

2.4. NNSY Standard Item 042-11-001 General Occupational Safety, Health and Environment (OSHE) Requirements for Work Within Norfolk Naval Shipyard

2.5. OPNAVINST M-5100.23 Navy Safety and Occupational Health Manual

2.6. Norfolk Naval Shipyard (NNSY) Asset Authorization Submittal Requirements

2.7. OPNAV M-5100.23 CH-3 Chapter 17 - Asbestos Control

2.8. 40 CFR763 Subpart E

3. REQUIREMENTS:

3.1. NNSY Requirements

3.1.1. NNSY will support Contractor work 10 hours a day on 1st shift (1st shift hours: 0600 to 1830). Monday through Friday, excluding government holidays. Due to overtime considerations, notification to the COR is required to support work outside of normal business hours 0600 to 1830. Notification must be received by the close of business on Tuesday of the week prior the week additional support is needed. Support outside of normal business hours will be evaluated on a case-by-case basis. Weekends may be utilized to maintain the project schedule, but this will also be addressed on a case-by-case basis.

3.1.2. NNSY will provide power to the work locations within the Navy Submarine where work is performed. Where required, contractor may request temporary power drops to be provided by the shipyard VIA a 110kVA transformer.

3.1.3. NNSY will provide technical representative points of contact for interface. See Section 3.10

3.1.4. NNSY will supply the Contractor with towels, Tyvek, shoe covers, and gloves if entrance to a regulated asbestos work area is deemed necessary.

3.2. General Requirements:

3.2.1. The Contractor shall provide at least two licensed/approved Personnel Monitoring technicians at all times during the work day. The Contractor shall perform work in accordance with the applicable references in section 2. The contractor shall comply with all references as cited within this contract, unless authorized by the Government.

3.2.2. The Contractor shall furnish the material, services, and workspace/trailers, unless furnished by the Government under express provisions of this contract, necessary for the execution of work.

3.2.3. Contractor shall work under NNSY Radiological Oversight Services.

3.2.4. The Contractor shall comply with all laws, ordinances, and regulations of Federal, State, and Local authorities regarding licenses, permits and consents that may be necessary. For any supplies or services provided pursuant to this contract, the Contractor shall comply with all applicable laws

and regulations of, but not limited to, the Commonwealth of Virginia, the Nuclear Regulatory Commission (NRC), Environmental Protection Agency (EPA), Occupational, Safety, and Health Administration (OSHA), Department of Transportation (DOT), and Toxic Substances Control Act (TSCA).

3.2.5. The Contractor shall allow inspections by NNSY representatives at all reasonable times. Inspections shall include asbestos controls, safety, and adherence to approved work procedures. Inspections may be random.

3.2.6. The Contractor shall provide a Project Manager to participate in the following meetings and conferences at NNSY request.

3.2.6.1. Project Progress meetings as requested.

3.2.6.2. Production meetings with C400/Contract Office Representative (COR) as requested.

3.2.6.3. Both a Pre-Job brief and a Pre-Shift brief with NNSY shall be accomplished before execution of approved work. The Pre-Job brief should be led by the worksite supervisor and include the mechanics and any support personnel for this job. The Pre-Job brief shall entail a review of the entire document being worked at any time before the execution of the work. A Pre-Shift brief shall entail the work to be accomplished per the approved document on the day of execution. The Pre-Shift brief should be led by the mechanic and should include participation/engagement from all personnel executing the approved work to ensure all personnel understand the scope.

3.2.6.4. Other meetings as required to cover any emergent needs that may develop over the availability.

3.3. Security Requirements:

3.3.1. All Contractors must have US citizenship and a Secret Security Clearance.

3.3.2. Contractors that don't have an appropriate clearance level will be required to submit the proper paperwork to the Defense Counterintelligence and Security Agency (DCSA) to initiate the security clearance process. NNSY will assist with the facilitation and vetting of this process.

3.3.3. The Contractor and all its employees shall conform to the security requirements that govern access to the shipboard spaces, dry dock, or other areas required to accomplish tasked work, and other miscellaneous security requirements in accordance with reference 2.1.

3.3.4. Contractors shall follow the PED policy for all electronic devices on site:

3.3.4.1. A PED is defined as any non-stationary electronic apparatus with singular or multiple capabilities of, but not limited to recording, storing, and/or transmitting data, voice, video, or photo images (E.g., cell phones, laptops, tablets, and wearable devices such as fitness bands and smart watches).

3.3.4.2. In accordance with NAVSEA 04 Ser 04/281 Implementation Plan for Allowing Camera-Portable Electronic Devices within the Controlled Industrial Area, personally owned camera enabled PEDs will be authorized inside of the Controlled Industrial Area (CIA) and all Security Islands. Camera enabled PEDs will remain unauthorized within the Controlled Nuclear Information Areas (CNIAs), Nuclear Work Areas (NWAs) and Open Storage Areas.

3.3.4.3. Unofficial photography, filming of video, or live streaming from the camera-enabled PED remains prohibited within the CIA or any NAVSEA controlled space outside of the CIA. Further, audio recordings (both digitally or magnetically) in NAVSEA spaces is prohibited without the approval of the NNSY Code 1120 Security Director.

3.3.4.4. Submarine Specific PEDs Instructions:

3.3.4.4.1 In accordance with COMSUBLANT/COMSUBPACINST 2075.1C, the use of PEDs while in or on Department of Navy Submarines are prohibited.

3.4. Asbestos Work Requirements:

3.4.1. Upon award of the contract, Contractor must provide NNSY with proof of licensing through the Commonwealth of Virginia.

3.4.2. Contractor will perform all equipment prechecks (flow, calibration chain of custody paperwork, log, physical inspection labeling, etc.)

3.4.3. Contractor to assemble equipment stand, pumps, and monitoring cassette and provide to RIO worker under RIO Asbestos Supervisor cognizance for installation in work area. Contractor personnel will not enter any radiological work areas. Contractor equipment may be subject to radiological evaluation (e.g. frisks) after hand-off and before entering radiological areas.

3.4.4. All equipment will be visually inspected/wiped down/HEPA vacuumed at the exit of the Class I work area (RC door). The "transfer box" will be located within the CPA to allow the CPAW to evaluate (e.g. frisk) materials to turn over to contractor. Any materials failing the evaluation shall be turned over to NNSY for gamma counting; based on these results, the materials will either be cleared for release or processed for disposal. Contractor will remain on the clean side of the tunnel to visually observe and log time(s).

3.4.5. Personal samples will need to be collected on eight individuals daily and be representative of both long term and excursion limit exposures specified in OSHA regulation Reference 2.3 (29 CFR 1915.1001).

3.4.5.1. Sample quantity can vary depending on the loading of the sample cassette, but could involve up to 23-36 samples per day (not including blanks).

3.4.5.2. Samples will need to be collected using a sampling flow rate of approximately 2-4 liters/minute.

3.4.5.3. NNSY may request additional personal samples as needed to prevent having overloaded cassettes.

3.4.5.4. Contractor will assist NNL-RIO worker(s) with donning personal pump and excursion pumps (if applicable) including positioning of label cassette(s). Non-excursion pumps maybe started outside the area at the direction of the air monitoring contractor or RIO worker under RIO Asbestos Supervisor cognizance will start personal monitoring pump at the entrance to asbestos area. Contractor will not enter radiological areas.

3.4.5.5. RIO worker under RIO Asbestos Supervisor cognizance will remove plug/cover from monitoring cassette and start excursion monitoring pump at start of activities relevant to excursion monitoring. RIO Asbestos Supervisor will report to contractor excursion pump start time for logging purposes.

3.4.5.6. RIO worker under RIO Asbestos Supervisor cognizance will stop excursion pump at T+30 minutes, replace cassette plug/cover and report stop time to Contractor. Excursion pump may be removed and processed out of the radiological area at this time dependent on efficiency.

Alternatively, if pump will remain on person but in an off position until worker exits the following means will be used.

At end of work cycle, RIO worker under RIO Asbestos Supervisor cognizance will exit the work area, turn off personal monitoring pump, relace cover /cap, report time to Contractor, and remove pump and cassette from person and place in "transfer box" to be evaluated by RADCON. Ideally the Contractor will be present in the clean side of the tunnel so they can visually observe this and log times.

3.4.6. General area samples will need to be collected at various inside locations (DCU, CPA, Critical Barrier for RC penetration if other than the tunnel, discharge of each HEPA filtered ventilation duct, and work area for RCUL and RCLL) and outside locations (boundary area, DCU, and work area) of the RC abatement site. All exhausts are to be monitored daily)). Samples will also be taken within the regulated area boundary if requested by removal entity or as specified in 3.4.6.4.

3.4.6.1. Contractors shall perform blanks IAW NIOSH 7400 (minimum of 2 field blanks or 10% of total samples, whichever is greater). Background samples will be used to validate final clearance.

3.4.6.2. Sample quantity can vary depending on the loading of the sample cassette but could involve up to 32 samples per day (not including blanks).

3.4.6.3. General area samples could also be necessary if a spill situation occurs to determine airborne levels and suitability for re-entry into affected spaces.

3.4.6.4. NNSY may request additional general area samples as needed.

3.4.6.5. Contractors shall consider changing out boundary sampling cassettes multiple times a day in dirty/heavy traffic areas.

3.4.6.6. RIO worker under RIO Asbestos Supervisor cognizance will remove plug/cover from monitoring cassette and start work area pump once placed in designated area. RIO Asbestos Supervisor will report to Contractor area monitoring pump start time for logging purposes

3.4.6.7. RIO worker under RIO Asbestos Supervisor cognizance will routinely inspect pump to ensure it is still operating as expected and report deficiencies to Contractor.

3.4.6.8. At the end of monitoring or if pump/cassette needs to be changed out, RIO worker under RIO Asbestos Supervisor cognizance will turn off work area pump, replace cover/cap, report time to contractor, and remove pump and/or cassette from location. Pump stand may remain in place if additional sampling is required.

3.4.7. At the conclusion of all asbestos removal, final clearance sampling shall be performed as required by reference 2.3, reference 2.7, and reference 2.8.

3.4.7.1. The Contractor will perform clearance samples at a minimum of 5 sample points inside the work area and 5 sample points outside the work area. Outside work area samples will be in the same locations as in the process boundary monitoring samples were. Air sampling will begin following a waiting period of at least 8 hours following completion of asbestos work.

3.4.8. The Contractor will turn over all air samples to an NNSY designated subcontractor for analysis.

3.4.9. Specific work requirements in addition to, and in clarification of, noted references:

3.4.9.1. Contractor shall provide dedicated Asbestos air sampling / exposure monitoring as noted.

3.4.9.2. Air sampling shall include personal exposure monitoring representative of both the time-weighted average and excursion limit daily while work operations occur. Air sampling shall be conducted on all employees associated with the asbestos work (anticipated to be 8 individuals) and verified that levels did not exceed 0.1 f/cc.

3.4.9.3. General area air sampling shall include perimeter monitoring to verify airborne levels do not exceed 0.01 f/cc outside of the asbestos regulated area (as analyzed by phase contrast microscopy). Samples shall be run continuously while the asbestos operations are ongoing, and shall include a minimum volume of 1200 liters of air and a maximum flow rate of 16 liters per minute.

3.4.9.4. Air sampling shall include general area monitoring within the RC during the asbestos removal operations to verify airborne levels do not exceed 0.01 f/cc outside of the containment or glove bag (as analyzed by phase contrast microscopy). Samples shall be run continuously while the asbestos operations are ongoing and shall include a minimum volume of 1200 liters of air.

3.4.9.5. Clearance air sampling shall be completed at the end of all asbestos removal operations and clean-up. Clearance criteria shall be as specified in 40 CFR 763, Subpart E.

3.4.9.6. Perimeter area, personal, general area, and clearance air sample results shall be turned over to a designated subcontractor for analysis with the expectation that NNSY will receive results within 24 hours of pump start time.

3.4.9.7. The exhaust for the ventilation serving the regulated work area to verify airborne levels do not exceed 0.01 f/cc at the exhaust (as analyzed by phase contrast microscopy, and to include a minimum volume of 1200 liters of air and a maximum flow rate of 16 liters per minute).

3.4.9.8. Air sampler shall also take negative pressure readings a minimum of every two hours during work operations, record values, and turn over to Code 106.21.

3.5. Asbestos Training Requirements:

3.5.1. All contractors performing asbestos air sampling must be trained, familiarized, and/or certified. Documentation is required for all training and certifications. Documentation will be provided to NNSY upon request.

3.5.1.1. Current Asbestos Worker/Asbestos Supervisor.

3.5.1.2. Documentation of training for personnel conducting air monitoring.

3.6. Personnel Qualification:

3.6.1. General:

3.6.1.1. All work under the terms of this contract will be performed in an efficient and workmanlike manner by personnel who are thoroughly familiar with the type of work being performed. The Contractor warrants that employees used on the work will, on the average, be as efficient as the average employees performing similar duties in the Contractor's own organization and will in all cases meet or exceed the minimum requirements set forth for the respective labor categories.

3.6.1.2. The Contractor will be responsible for employing appropriate professionally and technically qualified personnel to perform the tasks outlined herein. The Contractor must have the qualified personnel, organization and administrative control necessary to ensure that the finished products shall conform to each task order. If the Contracting Officer questions the qualifications or competence of any person(s) performing the contract, the burden of proof to sustain the person(s) is (are) qualified as prescribed herein will be upon the Contractor.

3.6.1.3. The level of skill, education, and experience of the personnel required to perform this effort will meet the minimums specified below. Personnel assigned for performance of a task to be ordered under this contract shall meet the minimum qualifications for the respective labor category under which they are charged.

3.6.2. Minimum Qualifications:

3.6.2.1. Personnel assigned to or utilized by the Contractor in the performance of this contract shall, as a minimum, be fully capable of performing the contemplated functions of the respective labor categories in an efficient, reliable, and professional manner.

3.6.2.2. The Government reserves the right to request the qualifications or competence of any person performing under this contract and the burden of proof to sustain that person is qualified as prescribed herein shall be upon the Contractor.

3.6.2.3. The Contractor will be responsible for employing trained management, technical, and other personnel to perform the work outlined. The Contractor must have the personnel, organization, and administrative control necessary to ensure that the services they perform meet all requirements specified in the delivery orders. The work history of each Contractor employee shall contain experiences directly related to the tasks and functions they are intended to perform prior to performing services under the contract. Further, these prior work experiences must be of sufficient variety and duration that the employee is able to effectively and efficiently perform the tasks and functions they will be assigned.

3.6.2.4. Training and qualification requirements apply to any subcontractors in the same manner with no exceptions.

3.7. Quality Management and Assurance:

3.7.1. The Contractor shall develop and maintain a Quality Management System, compliant with Reference 2.2, which provide assurances that all contracted work submitted to the Government for acceptance conforms to contract requirements. The Contractor's Quality Management System shall be documented and shall be submitted as part of the contract award process. The Contractor's Quality Management System shall be approved by NNSY prior to start of performance and shall be subject to periodic audits by NNSY throughout the contract Period of Performance.

3.8. Required Standard of Workmanship:

3.8.1. Unless otherwise specifically provided in the contract, the quality of all services rendered hereunder shall conform to the highest standards in the relevant profession, trade or field of endeavor. All services shall be rendered by or supervised directly by individuals fully qualified in the relevant profession, trade or field, and holding any licenses required by law and regulation.

3.9. Prior Written Permission Required for All Subcontracts:

3.9.1. Any changes in subcontractors, additions of subcontractors, or change in the processes performed by subcontractors must be approved by the Contracting Officer prior to the change or addition. A Contractor's request to change or add subcontractors or subcontracted processes will include the Technical Capability Information from the solicitation, which is delineated in the 52.212-1 Instructions to Offerors provision of the solicitation, about the subcontractor(s) covered by the request.

3.10 NNSY Points of Contact

TBD

SECURITY STATEMENTS FOR STATEMENTS OF WORK

The security requirements listed below are to be utilized as needed in the generation of a Statement of Work (SOW), Performance of Work (PWS) Package, E-Spec, or other such documents which dictate the parameters of work and expected actions of contractors working at Norfolk Naval Shipyard (NNSY).

Defense Biometric Identification System and NAVSEA Badging (REQUIRED FOR ALL CONTRACTS)

All contractors, with the exception of permanent party (or "seated" contractors with Common Access Cards (CACs), will be required to obtain a DBIDS card to gain access to NNSY.

Procedure for receiving a DBIDS card:

- a. Contractor will complete the SECNAV 5512 form(s) and forward them to their NNSY Sponsor/Contracting Officer's Representative (COR).
- b. The sponsor will complete the CVS spreadsheet utilizing the information on the completed SECNAV5512 forms and forward all documents to Commander Navy region Mid-Atlantic (CNRMA) for vetting.
- c. CNRMA will add the contractor to the "179-Day List" which is utilized by the Pass and ID office to create the DBIDS card.
- d. Once on the 179-Day List, the contractor may go to Pass and ID to have their DBIDS card generated.
- e. Green NAVSEA access badges can be generated at this point with contractors providing proof of U.S. Citizenship (Birth Certificate/ US Passport).

Portable Electronic Devices (PEDs) (REQUIRED FOR ALL CONTRACTS)

A PED is defined as any non-stationary electronic apparatus with singular or multiple capabilities of, but not limited to recording, storing, and/or transmitting data, voice, video, or photo images (e.g., cell phones, laptops, tablets and wearable devices such as fitness bands and smart watches).

a. NAVSEA 04 Ser 04/281 IMPLEMENTATION PLAN FOR ALLOWING CAMERA-PORTABLE ELECTRONIC DEVICES WITHIN THE CONTROLLED INDUSTRIAL AREA

b. NAVSEAINST 2200.1A PORTABLE ELECTRONIC DEVICES POLICY

c. SECROMAN Vol 1 5510.36 Rev E

In accordance with ref (a), personally owned camera enabled PEDs will be authorized inside of the Controlled Industrial Area (CIA) and all

Security Islands. Camera enabled PEDs will remain unauthorized within Controlled Nuclear Information Areas (CNIAs), Nuclear Work Areas (NWAs) and Open Storage Areas.

All PEDs, camera enabled or not, are still prohibited within NWAs and Open Storage Areas.

The allowance of camera enabled PEDs inside of the CIA and Security Islands does not negate existing photography policies. Unofficial photography, filming of video, or live streaming from the camera-enabled PED remains prohibited within the CIA or any NAVSEA controlled space outside of the CIA. Further, audio recordings (both digitally or magnetically) in NAVSEA spaces is prohibited without the approval of the Code 1120 Security Director.

Submarine SPECIFIC PEDs Instructions: In accordance with COMSUBLANT/ COMSUBPACINST 2075.1C, the use of PEDs while in or on Department of Navy Submarines are prohibited.

Access to Classified Information or Spaces

All contractors executing this contract are required to have a minimum security clearance of _____ (Completed by SME).

All contractors requiring access to classified information, or those spaces containing un-sanitized classified information, shall possess a final security clearance.

In addition to completing the steps above, if the contractor requires access to classified information, spaces, or equipment in accordance with the requirements of the contract, the contracting company's Facility Security Officer is required to submit a visit request in the Defense Information System for Security (DISS) to Security Management Office (SMO) Code 001816.

The SMO Code(s) of the ship or command the contractor is visiting are not to be utilized.

After receiving a DBIDS card, their visit request, security clearance and access permissions (verified in DISS) are reviewed to ensure they meet the minimum security requirements set forth in the contract. Once verified, the contractor will receive the appropriate NAVSEA access badge.

RESTRICTED DATA SPECIFIC

All contractors requiring a red NAVSEA badge and access to Restricted Data (RD) shall have a final security clearance.

Red NAVSEA badge personnel may require access to Nuclear Areas, Nuclear Information, Nuclear equipment, Naval Nuclear Propulsion Information (NNPI), RD, and Not Releasable to Foreign Nationals (NOFORN) data due to the nature of the work being performed on Naval Nuclear propulsion systems.

A red NAVSEA badge is necessary for the execution of nuclear and some non-nuclear work; inclusive of the propulsion plant and secondary spaces as well as those systems which support the propulsion plants which may not be located in the propulsion plant when any of those spaces can't be sanitized.

Access to RD and the issuance of red NAVSEA badges will be issued in accordance with NAVSEA M-5510.2.

CONTROLLED UNCLASSIFIED INFORMATION ACCESS

The DoD will provide information to contractors and will identify all information which is Controlled Unclassified Information (CUI) via the contracting vehicle, in whole or part, and will mark such documents, material, or media in accordance with this issuance.

When CUI is generated by non-DoD entities protective measures and dissemination controls, including those directed by relevant law, regulation, or government-wide policy, will be articulated

in the contract, grant, or other legal agreement, as appropriate.

DoD contracts must require contractors to monitor CUI for aggregation and compilation based on the potential to generate classified information pursuant to security classification guidance addressing the accumulation of unclassified data or information. DoD contracts require contractors to report the potential classification of aggregated or compiled CUI to a DoD representative.

Contractors, pursuant to mandatory DoD contract provisions, will submit unclassified DoD information for review and approval for release in accordance with the standard DoD Component processes and DoDI 5230.09.

All CUI records must follow the approved mandatory disposition authorities whenever the DoD provides CUI to, or CUI is generated by, non-DoD entities in accordance with Section 1220-1236 of Title 36, CFR, Section 3301a of Title 44, U.S.C., and this issuance.

SEATED CONTRACTOR SPECIFIC

All contractors who receive CACs and are granted access to Navy or NNSY information technology systems and are stationed at NNSY as their permanent work location are considered to be "seated" contractors.

All seated contractors will be required to report to BLDG 1502, 2nd floor to the Personnel Security Office (Code 1127) for check-in. Code 1127 will own the seated contractor in the system of record and will be responsible for the maintenance for the contractor's security profile.

All seated contractors will be required to attend, at a minimum, the security education portion of NNSY New Employee Orientation.

The security education portion will contain, but is not limited to, Antiterrorism Level 1, Combatting Trafficking in Persons, Active Shooter training, Information Security, Personnel Security, and Operations Security Awareness training.

Further, all seated contractors will be required to complete all annual computer based security refresher training, which is tracked and verified by the training coordinator for the code to which the contractor is assigned.

Requirements

Statement of Work Personnel Asbestos Monitoring CLIN 0001 and CLIN 0002

Section D - Packaging and Marking

Section E - Inspection and Acceptance

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-1	Contractor Inspection Requirements.	Apr 1984		
Overall Contract Inspection/Acceptance Locations				

0001	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0002	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N42158 N42158 1 NORFOLK NAVAL SHIPYARD BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TBD, TBD Email: TBD Telephone: TBD

Section F - Deliveries or Performance

ACCESS to NNSY

REQUIREMENTS FOR ACCESS TO NNSY

Commander, Navy Installations Command (CNIC), has established the Defense Biometric Identification System, (DBIDS), a standardized process for granting unescorted access privileges to vendors, contractors, suppliers and service providers not otherwise entitled to the issuance of a Common Access Card (CAC) who seek access to and can provide justification to enter Navy installations and facilities. Participation in the DBIDS is not mandatory, and if the Contractor chooses to not participate, the Contractor's personnel will have to obtain daily passes, be subject to daily mandatory vehicle inspection, and will have limited access to the installation. The Government will not be responsible for any cost or lost time associated with obtaining daily passes or added vehicle inspections incurred by non-participants in the DBIDS. Alternatively, if the vendor so chooses, it may voluntarily elect to obtain long-term credentials through enrollment, registration, background vetting, screening, issuance of credentials, and electronic validation of credentials. Further information regarding DBIDS can be found at <https://www.cnic.navy.mil/om/dbids.html>.

NOTE: Building 276 TELEPHONE: 757-396-5815 (or 5095)

Overall Contract Delivery Period

Contractor
Destination

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery Period From 03 Aug 2026 to 30 Sep 2026 Period of Performance From 03 Aug 2026 To 23 Dec 2026	10 Hours	Service Performance Site DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0002	Delivery Period From 01 Sep 2026 to 23 Dec 2026 Period of Performance From 03 Aug 2026 To 23 Dec 2026	162 Days	Service Performance Site DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TBD, TBD Email: TBD Telephone: TBD

Section G - Contract Administration Data

Safety Office points of contact:

Code 970 Dispatch 1-757-396-5895
Shipyard -Emergency 1-757-396-3333
Shipyard - Non-Emergency 1-757-396-3335
OCCUPATIONAL SAFETY, HEALTH, & ENVIRONMENT (OSHE) PROGRAMS -Code 106
757-396-7231

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
- (ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Not Applicable

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice 2 in 1

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>N50082</u>
Issue By DoDAAC	<u>N42158</u>
Admin DoDAAC	<u>N42158</u>
Inspect By DoDAAC	<u>N42158</u>
Ship To Code	<u>N42158</u>
Ship From Code	==
Mark For Code	<u>TBD</u>
Service Approver (DoDAAC)	<u>N42158</u>
Service Acceptor (DoDAAC)	<u>N42158</u>

Accept at Other DoDAAC	==
LPO DoDAAC	<u>N42158</u>
DCAA Auditor DoDAAC	==
Other DoDAAC(s)	<u>050120</u>

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

G-232-H002 H002 PAYMENT INSTRUCTIONS (NAVSEA) (FEB 2024)

(Feb 2024)

Payment office allocation methods can be found in the table at DFARS PGI 204.7108(b)(2) (https://www.acq.osd.mil/dpap/dars/pgi/pgi_htm/current/PGI204_71.htm#payment_instructions).

This procurement is for firm fixed priced items.

(End of text)

G-242-H002 HOURS OF OPERATION AND HOLIDAY SCHEDULE (NAVSEA) (JUL 2021)

(Jul 2021)

(a) The policy of this activity is to schedule periods of reduced operations or shutdown during holiday periods. Deliveries will not be accepted on Saturdays, Sundays or Holidays except as specifically requested by the [insert activity name]. All goods or services attempted to be delivered on a Saturday, Sunday or Holiday without specific instructions from the Contracting Officer or his duly appointed representative will be returned to the contractor at the contractor's expense with no cost or liability to the U. S. Government.

(b) The federal Government observes public Holidays that have been established under 5 U.S.C. 6103. The actual date of observance for each of the holidays, for a specific calendar year, may be obtained from the OPM website at OPM.GOV or by using the following direct link: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>.

(c) Delayed Opening, Early Dismissal and Closure of Government Facilities. When a Government facility has a delayed opening, is closed or Federal employees are dismissed early (due to severe weather, security threat, security exercise, or a facility related problem) that prevents personnel from working, onsite contractor personnel regularly assigned to work at that facility shall follow the same reporting and/or departure directions given to Government personnel. The contractor shall not direct charge to the contract for such time off, but shall follow parent company policies regarding taking leave (administrative or other). Non-essential contractor personnel, who are not required to remain at or report to the facility, shall follow their parent

company policy regarding whether they should go/stay home or report to another company facility. Subsequent to an early dismissal, delayed opening, or during periods of inclement weather, onsite contractors should monitor the OPM website as well as radio and television announcements before departing for work to determine if the facility is closed or operating on a delayed arrival basis.

(d) When Federal employees are excused from work due to a holiday or a special event (that is unrelated to severe weather, a security threat, or a facility related problem), on site contractors shall continue working established work hours or take leave in accordance with parent company policy. Those contractor employees who take leave shall not direct charge the non-working hours to the contract. Contractors are responsible for predetermining and disclosing their charging practices for early dismissal, delayed openings, or closings in accordance with the FAR, applicable cost accounting standards, and the company's established policy and procedures. Contractors shall follow their disclosed charging practices during the contract period of performance, and shall not follow any verbal directions to the contrary. The Contracting Officer will make the determination of cost allowability for time lost due to facility closure in accordance with FAR, applicable Cost Accounting Standards, and the Contractor's established accounting policy and procedures.

(e) If you intend to visit the Contracts Office, it is advised that you call for an appointment at least 24 hours in advance.

(f) The hours of operation are as follows:

AREA	FROM	TO
Norfolk Naval Shipyard	0700	1630

(g) All deliveries to the Receiving Officer, Norfolk Naval Shipyard, Bldg. 276, Portsmouth, VA 23709, shall be made Monday through Friday from 0700 to 1630 local time. No deliveries will be accepted after 1630, local time. No deliveries will be accepted on federal government holidays.

(End of Text)

G-242-H001 GOVERNMENT CONTRACT ADMINISTRATION POINTS-OF-CONTACT AND RESPONSIBILITIES (NAVSEA) (OCT 2023) (Oct 2023)

(a) The Government reserves the right to administratively substitute any of the points of contact listed below at any time.

(b) The contracting officer is the only person authorized to change this contract, or orders issued thereunder. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as part of this contract. If, in the opinion of the contractor, an effort outside the existing scope of this contract is requested, the contractor shall promptly comply with the Notification of Changes clause of this contract.

The points of contact are as follows:

The Procuring Contracting Officer (PCO) is:
Chad Godwin
Norfolk Naval Shipyard, Bldg. 65, Floor 1
Portsmouth, VA 23709
1-757-396-8360 office
chad.r.godwin.civ@us.navy.mil

The Contract Specialist is:
Eliot Faircloth
Norfolk Naval Shipyard, Bldg. 65, Floor 1
Portsmouth, VA 23709
1-757-396-8673
john.e.faircloth2.civ@us.navy.mil

The Administrative Contracting Officer (ACO) is:
Chad Godwin
Norfolk Naval Shipyard, Bldg. 65, Floor 1
Portsmouth, VA 23709
1-757-396-8360 office
chad.r.godwin.civ@us.navy.mil

(c) The Contracting Officer's Representative (COR) is the contracting officer's appointed representative for technical matters. The COR is not a contracting officer and does not have the authority to direct the accomplishment of effort which is beyond the scope of the contract or to otherwise change any contract requirements. An informational copy of the COR appointment letter, which provides a delineation of COR authority and

responsibilities, will be provided upon award of this contract.

Not Applicable

(d) The Alternate Contracting Officer's Representative (ACOR) is responsible for COR responsibilities and functions in the event that the COR is unavailable due to leave, illness, or other official business. The ACOR is appointed by the contracting officer; a copy of the ACOR appointment will be provided upon award of this contract.

Not Applicable

(e) The Technical Point of Contact (TPOC) is the contracting officer's representative for technical matters when a COR is not appointed. The TPOC is responsible for technical issues of contract administration, such as providing all items of Government Furnished Information (GFI), Government Furnished Material (GFM) and Government Furnished Equipment (GFE) if specified in the contract as well as the inspection and acceptance of all contract deliverables.

The Technical Point of Contact (TPOC) is:

TBD

(f) The Alternate Technical Point of Contact (ATPOC) is responsible for TPOC responsibilities and functions in the event that the TPOC is unavailable due to leave, illness, or other official business.

Not Applicable

(g) The Ombudsman will review complaints from the contractors and ensure that all contractors are afforded a fair opportunity to be considered, consistent with the procedures in the contract.

Not Applicable

(h) The Authorized Ordering Person(s) for Per-Call Maintenance is responsible for issuing and maintaining records for any per-call orders for remedial maintenance placed under this contract. No per-call order shall be placed outside the scope of this contract and the cumulative total of all orders shall not be in excess of any not-to-exceed amount specified in the contract. Per-call orders shall not, in any way, modify any terms and conditions of the contract.

Not Applicable

(i) The Contractor's point of contact for performance under this contract is:

TBD

(End of text)

(End of Text)

Section H - Special Contract Requirements

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	Feb 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	Feb 2026		
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	Feb 2026		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	Apr 2026		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award. (Deviation 2026-O0038)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	Feb 2026		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	Feb 2026		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	Apr 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.233-7001	Choice of Law (Overseas).	Jun 1997		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.222-42 Statement of Equivalent Rates for Federal Hires.

(May 2014)

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
<u>30090-Environmental Tech</u>	<u>GS-6 \$25.87 30%</u>
<u> </u>	<u> </u>

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==	==
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(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR Clauses <https://acquisition.gov>

DFARS Clauses <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

DASN (P) site <https://www.secnave.navy.mil/rda/DASN-P/Pages/NMCARS.aspx>

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulations (48 CFR, Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

Section J - List of Attachments

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-00038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		

DFARS Clauses Incorporated by Full Text

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	Feb 2026		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		

FAR Clauses Incorporated by Full Text

52.219-4	Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Deviation 2026-O0038)	(Feb 2026)
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NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026) (DEVIATION 2026-O0038)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

Section M - Evaluation Factors for Award

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038) (Feb 2026)

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Lowest Price Technically Acceptable

Please note:

The Government reserves the right to request documentation related to applicable items that will help the Government best meet the requirements within the Statement of Work. The Government may use SAM.gov, CPARS, SPRS, the review of relevant purchase order history, and other applicable resources.

TECHNICAL SUBMISSION (ATTACHMENT 1, TECHNICAL CAPABILITY STATEMENT) MUST BE FILLED OUT AND SUBMITTED ALONG WITH PRICING IN ORDER TO BE CONSIDERED FOR EVALUATION.

Technical Ratings will be deemed acceptable or unacceptable. Acceptable means that the quote meets all of the requirements identified, and unacceptable means that the quote does not meet all of the requirements filled.

Price is the estimated amount for each line item added together to determine the total estimated price which will become the evaluated price. The vendor's proposed price will be evaluated on the basis of price reasonableness.

The award decision is based on evaluation factors and significant subfactors that are tailored to (FAR 15.304). This is a 100% small business set-aside procurement.

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)